

receive any benefit from that lawsuit. (Le Pham dec. ¶¶24 and 27.) She also declares that she never made any representations to Bowles & Verna that she was a guarantor of the payment of legal bills and never paid Bowles & Verna any money related to the Grand-Mandana lawsuit. (Le Pham dec. ¶¶25 and 26.)

The Court finds that Le Pham has met her burden of showing that she did not promise to pay for the brother's legal fees and was not a party to the Grand-Mandana lawsuit. Thus, these facts show that Bowles & Verna did work to benefit the brothers, not Le Pham. Defendant has met her initial burden.

In opposition, Richard Bowles declares that Le Pham reached out to him and asked if Bowles & Verna could represent her brothers in the Grand-Mandana lawsuit. (Bowles dec. ¶4.) Le Pham accompanied her brothers at the initial meeting and would attend other meetings between Bowles and the brothers about Grand-Mandana lawsuit. (Bowles dec. ¶¶5, 7.) Bowles states that when first discussing the issue of payment, Le Pham assured him that the bills would be paid and funds available for Bowles & Verna's services, however, she did not disclose the Equity Line of Credit. (Bowles dec. ¶9.) Bowles did not learn of the ELOC until after this lawsuit was filed. (Bowles dec. ¶10.)

While there is a triable issue as to whether Le Pham told Bowles that she would pay her brother's attorney fees in the Grand-Mandana lawsuit, that triable issue is not material. Assuming that Le Pham orally agreed to pay her brothers' legal fees, there is no showing that the work Bowles & Verna did was intended to benefit Le Pham, as opposed to her brothers.

The evidence does not show that Le Pham and Bowles intended the work by Bowles & Verna to benefit Le Pham. It was only after Bowles & Verna stopped working on the case and sued the brothers that it first learned that Le Pham had an interest in the Grand-Mandana lawsuit. Thus, there is no evidence that that the services rendered were intended to benefit the defendant.

The Court finds that Plaintiff has not shown there is a triable issue of material fact as to the quantum meruit cause of action and the Court grants the motion for summary adjudication as to cause of action five.

Defendant's request for judicial notice of Business and Professions Code section 6148 is granted. Although, it is not usually necessary to request judicial notice of California Statutes.

Discovery Law & Motion

15. 9:01 AM CASE NUMBER: C24-03078

CASE NAME: THALBIR OLI VS. GOVIND SHAHI

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT GOVIND K. SHAHI'S FORM INTERROGATORIES, SET ONE

FILED BY: SHAHI, GOVIND K.

TENTATIVE RULING:

Granted. Defendant shall provide further full and complete verified written answers to the following form interrogatories: 6.2, 6.5, within 30 days from the date of this hearing. If the parties continue to have discovery disputes, the Court will consider appointing a discovery special master/referee at their expense.

16. 9:01 AM CASE NUMBER: C24-03078
CASE NAME: THALBIR OLI VS. GOVIND SHAHI
***HEARING ON MOTION FOR DISCOVERY COMPEL CONTINUED DEPOSITION OF DEFENDANT**
SUSHOVAN SHAHI
FILED BY: OLI, THALBIR
TENTATIVE RULING:

Granted. Defendant shall be made available for additional deposition questioning of not to exceed 7 hours. The deposition shall be scheduled at a time mutually agreeable to the attorneys within the next 30 days from the date of this hearing. If the parties continue to have discovery disputes, the Court will consider appointing a discovery special master/referee at their expense.

17. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF TONY J. ZAHNER'S AMENDED**
RESPONSES TO CROSS-COMPLAINANT JOELLE MARY SCIMIA'S FORM INTERROGATORIES, SET ONE
FILED BY: SCIMIA, JOELLE MARY
TENTATIVE RULING:

Off calendar, case settled.